

SENATE No. 1296

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting the right to time off for voting.

PETITION OF:

NAME:

Brendan P. Crighton

DISTRICT/ADDRESS:

Third Essex

SENATE No. 1296

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 1296) of Brendan P. Crighton for legislation to protect the right to time off for voting. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1153 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting the right to time off for voting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 178 of Chapter 149 of the General Laws, as appearing in the 2022
2 Official Edition, is amended by striking said section and inserting in place thereof the following:-

3 Section 178. Every employer shall allow sufficient time for a person under his or her
4 employ to exercise their right to vote in a state or municipal election in the Commonwealth. If a
5 voter does not have sufficient time outside of working hours to vote during an election or
6 designated early voting period, the voter may, without loss of pay, take off enough working time
7 that, when added to the voting time available outside of working hours, will enable the voter to
8 vote, provided the employee gives the employer at least 3 days notice.

9 The time off for voting shall be only at the beginning or end of the regular working shift,
10 whichever allows the most free time for voting and the least time off from the regular working
11 shift, unless otherwise mutually agreed.

12 SECTION 2. Said Chapter 149 is further amended by adding the following new sections:

13 Section 178(a). Every employer subject to this section shall post in a conspicuous place,
14 or via electronic communication, a notice prepared and disseminated by the secretary of the
15 commonwealth, containing such relevant information as the Secretary deems necessary to
16 explain the section.

17 Section 178(b). Any employer who refuses to comply with the provisions of section one
18 hundred seventy-eight regarding time off to vote shall be punished by providing an aggrieved
19 voter under his or her employ a full day's pay.

20 Enforcement of this section will be under the purview and supervision of the Fair Labor
21 Division of the attorney general's Office.